COMMENTS ON DIVORCE: MATTHEW 5:32

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"Everyone that puts away his wife—except for sexual immorality—treats her like an adulteress, and whoever marries a divorced woman commits adultery."*

For purposes here, we pass over some technicalities associated with the aorist passive infinitive (μοιχευθῆναι, *moicheuthēnai*, *"makes her to be adulterated[?]"*) and deal with more straightforward considerations.

Jesus teaches that divorce is contrary to God's original intention for marriage. Marriage is no longer the way it was under the Mosaic Law, where a husband could legally divorce his wife even if she had not been unfaithful. No longer could he, for example, use divorce to avoid adultery—divorce his wife to marry "the other woman." Such a thing amounts to adultery in motive and attitude.

Adultery is the basis Jesus gives here for divorcing a wife. So, under that principle, by divorcing her, a husband is indicating that she has been sexually immoral. He makes her an adulteress *"in the eyes of other people"*; he represents her as unfaithful. If she did commit adultery, she made herself an adulteress, which is the point of the exception clause.

If she was <u>not</u> unfaithful to him, he "treated"* her like she was; he "made her out" to be so. He "made" her an adulteress in the same sense as people who say they have not sinned make* God a liar (1 John **1**:10; cp. **5**:10). God is not a liar; so "makes" him a liar means "treats" him like one. When people deny their own sinfulness, they act as if God is lying when he claims that all have sinned and fall short of the God's glory (Romans **3**:23). The same word appears in Matthew's and John's statements (ποιέω, *poieō*): *"makes her an adulteress"* and *"makes God a liar."* A similar meaning for the word appears in John **10**:33 and **19**:7, when religious leaders accuse Jesus of making himself equal with God. These leaders likewise tell Pilate that whoever makes himself king speaks against Caesar, though of course, they did not believe he was (John **19**:12). <u>Guilt is personal</u> so people cannot make other people sinners any more than they can make themselves God or king or make God a liar.

In saying that whoever marries a divorced woman commits adultery, Jesus means marrying a woman who <u>was</u> divorced for adultery. A man who marries that kind of woman shows that he is like her; her character does not matter to him. Taken this way, the reference to *"her who was been put away"* is to the basic principle—no divorce except for adultery. Understood that way, the idea becomes: *"Whoever divorces his wife—except for sexual immorality—treats her like an adulteress because that is what divorce is for, and whoever marries her that has been divorced for adultery commits adultery himself."*

Marrying someone not legitimately divorced raises a situation that lies beyond the scope of Matthew **5**:32, but some points seem appropriate regarding the "innocent party." **(a)** If a woman was divorced without being unfaithful, marrying her involves a different motive. Marrying her would not be committing adultery because it does not involve a lack of concern for her immorality—there was no immorality.

Secondly, **(b)** in Matthew **19**:10-13, Jesus' disciples conclude, if that is the way marriage is, it would be better not to get married. Jesus answers that not everybody can live that way (from a practical standpoint). His comment reflects the creation account, where God said it was not good for the man to be alone. It relates also to Paul's observation that not everyone has the gift of continence; so Paul concedes that it is better to marry than to "burn" (presumably with sexual desire; 1 Corinthians **7**:8-9). For most people, the single state is not desirable in itself, *"It's not good for the man to be alone"* (Genesis **2**:18). That would seem to be truer after being married. Matthew **5**:32 is speaking about the theory of marriage, but Jesus' additional comments in Matthew **19** and Paul's advice in 1 Corinthians **7** indicate that practical need may override basic theory in this matter.

The unnaturalness of the single state for most people brings to mind Abraham's point that **(c)** God surely does not punish the righteous with the wicked. *"The Judge of all the earth does right, doesn't he?"* (Genesis **18**:23, 25). Good people do suffer at the hand of bad people; but in God's forbidding innocent parties to remarry, he would in principle be setting things up to require unnaturalness and even hardship on the part of the innocent because of the sins of the guilty. That would seem to go beyond *suffering* allowed to *unhappiness* required, hence, punishment, even though a wholesome alternative could be allowed.

(d) Paul says finally that we have been called to peace (1 Corinthians **7**:15). An unnatural state would not seem to be what a person would consider "peace."

Beyond matters noted here, a more complete treatment of divorce should consider the impact of repentance on the question as well as circumstances like desertion or physical, emotional, and verbal abuse.